

24STCV25392 24STCV25392

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Case Number: 24STCV25392 Hearing Date: September 23, 2026 Dept: 514

Huh v. FCA US, LLC

24STCV25392

Defendant's Motion to Compel Deposition of Plaintiff

Defendant's Motion to Compel Vehicle Inspection

Tentative Ruling

The motion to compel the deposition of
Plaintiff is granted.

The motion to compel a vehicle inspection is
denied without prejudice.

This case is brought under the Song-Beverly
Consumer Warranty Wact. Currently before
the Court and set for hearing on September 23, 2026 are two motions.

First, on July 29, 2026, Defendant FCA US LLC
("Defendant") filed a motion to compel the deposition of Plaintiff John J. Huh
("Plaintiff") and for monetary sanctions.

Second, also on July 29, 2026, Defendant filed
a motion to compel Plaintiff to produce the vehicle at issue for inspection and
for monetary sanctions.

No opposition to either motion has been filed.

The motion to compel the deposition of Plaintiff is granted. All substantive and procedural requirements have been satisfied. As the discovery cutoff is October 2, 2026, the Court orders Plaintiff to appear for deposition and to answer questions under penalty of perjury on October 1, 2026, at 10:00 am, by video conference, and to produce, at or before the time of the deposition, all documents in the deposition notice served on June 22, 2026.

Defendants' request for monetary sanctions is granted in part. Sanctions are set in the amount of \$670, based on two hours of time reasonably expended in connection with the motion, multiplied by counsel's reasonable billing rate of \$305 per hour, plus \$60 in filing fees. (Sharp Decl., ¶ 8.) Sanctions are imposed against Plaintiff only. The Court has received information that Plaintiff has ceased responding to communication from his counsel, and so under all of the circumstances the Court finds that it would be unjust to impose sanctions against counsel.

The motion to compel a vehicle inspection is denied without prejudice. Defendant seeks an order compelling Plaintiff to produce the vehicle for inspection by October 1, 2026. Defendant states that the motion is based on Code of Civil Procedure sections 2031.010 (which relates to sanctions) and 2031.310.

The Civil Discovery Act provides for three separate types of motions relating to demands for inspection, copying, testing, or sampling of documents, tangible things, or other property: (1) a motion to compel a code compliant initial written response (when no response has been provided) (Code Civ. Proc., § 2031.300); (2) a motion to compel a further response (when a response has been provided but it is not code compliant or contains unmeritorious objections) (Code Civ. Proc., § 2031.310); and (3) a motion to compel compliance with a response stating that the inspection will be allowed (Code Civ. Proc., § 2031.320).

Here, there is a

disconnect between the relief sought and the status of discovery responses. Defendant served a demand for inspection, and Plaintiff responded with objections on July 17. (See Sharp Decl., Exh. D.) To the extent that Defendant's motion is brought under Code of Civil Procedure section 2031.310 (as the notice of motion states), the relief that Defendant can obtain is an order compelling a further response.

The relief that Defendant seeks – an order compelling the inspection of the vehicle – is available only under Code of Civil Procedure section 2031.320. But a motion under section 2031.320 may be brought when a responding party has agreed to comply with a request for an inspection demand (either initially or after a motion to compel a further response has been granted) but then fails to permit the inspection. (Code Civ. Proc., § 2031.320, subd. (a).) Here, Plaintiff objected; he did not agree to permit the inspection.

Defendant's motion to compel an inspection is denied. So, too, is Defendant's request for sanctions.

Conclusion

The Court GRANTS the motion of Defendant FCA US LLC to compel the deposition of Plaintiff John Huh.

The Court ORDERS Plaintiff John Huh to appear for deposition and to answer questions under penalty of perjury on October 1, 2026, at 10:00 am, by video conference, and to produce, at or before the time of the deposition, all documents in the deposition notice served on June 22, 2026.

The Court ORDERS Defendant to provide a link to the deposition to Plaintiff by no later than 24 hours in advance of the deposition.

The Court GRANTS Defendants' request for monetary sanctions in part.

The Court ORDERS Plaintiff John Huh to pay

monetary sanctions under the Civil Discovery
act in the amount of \$670 to Defendant (through counsel) by no later
than October 23, 2026.

The Court DENIES the request for sanctions against
Plaintiff's counsel.

The Court DENIES, without prejudice,
Defendant's motion to compel Plaintiff to produce the vehicle at issue for
inspection and DENIES Defendant's request for sanctions in that motion.

Defendant is ORDERED to give
notice.